

TENTATIVE RULINGS FOR September 9, 2026
Department R-14
BEFORE THE HONORABLE TONY RAPHAEL
(909) 285-3717

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department R-14 at SScott@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

PLEASE REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling the department at 909-285-3717. If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

NORTH AMERICAN SPECIALTY

V.

PICKARD & BUTTERS

CIVDS1831948

Procedural/Factual Background

On December 11, 2018, Plaintiff North American Specialty Insurance Company filed a complaint against Defendants Pickard & Butters Construction, also known as Mark Alan Butters and Dana R. Butters, also known as Dana Rayburn Butters alleging causes of action for: (1) breach of indemnity contract; and (2) reimbursement. Defendants filed a cross-complaint against North American alleging breach of contract. The parties' claims arose out of payment and performance bonds issued to Pickard by North American.

Trial of this action was bifurcated. On April 24, 2026, the Court entered judgment in North American's favor in the amount of \$1,381,170,51.

Notice of Entry of Judgment was filed and serve on May 8, 2026, and North American filed a Memorandum of Costs on May 26, 2026 seeking costs of \$16,028.14.

Now before the Court is Defendants' motion to tax North American's Memorandum of Costs. North American opposes. Defendants reply.

This matter originally came before the Court for hearing on June 22, 2026. At the hearing, Defendants withdrew their timeliness objection, and the hearing was continued for North American to submit an itemization of its costs and to allow the parties to brief the reasonableness of the costs.

North American filed a supplemental Memorandum of Costs (Worksheet) identifying \$16,028.14 in total costs comprised of: 1. Filing and motion fees—\$2,527.97; 5. Service of process—\$148; 11. Court reporter fees—\$12,932.50; and 13. Models, enlargements, and photocopies of exhibits—\$420.23. Defendants reply. North American responds.

DISCUSSION

Legal Standard

Except as otherwise stated, a prevailing party¹ is entitled, as a matter of right, to recover costs in any action or proceeding. (Code Civ. Proc., § 1032, subd. (b).) The costs allowed shall be reasonably necessary to the conduct of the litigation and reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3).) The filing of a verified Cost Memorandum is sufficient to establish that the sought costs are reasonable and necessary, thereby the prevailing party need not submit any bills, invoices, statements, or other documents. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) If the items on the memorandum of costs appear to be proper charges, then the party seeking to tax those costs bears the burden that the costs are unreasonable or unnecessary, but if the items are properly objected to, then the burden of proof lies with the party seeking to recover the costs to show their necessity and reasonableness. (*Ladas v. California State*

¹ “Prevailing party,” for purposes of recovery of costs, is defined as “[T]he party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. When any party recovers other than monetary relief and in situations other than as specified, the “prevailing party” shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.” (Code of Civ. Proc., § 1032, subd. (4).)

Auto. Assn. (1993) 19 Cal.App.4th 761, 774; *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 283, 243.)

The mere filing of a motion to tax costs may be a “proper objection” to an item, the necessity of which appears doubtful, or which does not appear to be proper on its face. (*Oak Grove School Dist. v. City Title Ins. Co.* (1963) 217 Cal. App. 2d 678, 698-699 (*Oak Grove*).) However, “[i]f the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the [party seeking costs], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].” (*Id.* at p. 699; see also *Miller v. Highland Ditch Co.* (1891) 91 Cal. 103, 105-106.)

Analysis

North American filed a supplemental declaration with a worksheet itemizing its costs (Guenther Decl. Exh. A) and invoices and billing in support of each cost included in the worksheet (Guenther Decl. Exhs. B-E.)

In opposition, Defendants generally argue that they have objected to all costs and North American has failed to carry its burden to establish that any of the requested costs are reasonable or necessary. Defendants specifically object to item 11 (court reporter fees of \$12,932.50 comprised of \$9,273.50 paid to Lexias and \$3,659.00 paid to Steno) arguing that the \$12,932.50 claimed is unreasonable because North American paid Lexias \$2,871 for its court reporting services for phase 1 of the proceedings but Defendants was only charged \$1,778.00 when it ordered a certified copy of the transcripts Lexias reported. (Nichols Decl. ¶¶ 5-6.) Defendants argue that this demonstrates North American overpaid Lexias in this instance which calls into question the remaining court reporter fees.

In opposition, North American argues that court reporter fees are recoverable under the statute and that the fees paid are reasonable because North American had to pay court reporters' per diem fees and the fees to prepare and finalize the transcripts. (Guenther Decl. Exh. D.) North American was not simply paying for copies of transcripts.

Defendants do not "properly object" to any of the costs in the Memorandum. Defendants fail to identify any claimed costs that appear doubtful or are improper on their face. (*Oak Grove, supra*, 217 Cal. App. 2d at pp. 698-699.) The court reporter fees that Defendants identify do not appear doubtful or improper on their face as they are expressly identified as recoverable under the statute. (Code Civ. Proc., §§ 1032, 1033.5, subdivision (a)(11).) Thus, lacking proper object, the items included in the North American's Memorandum are prima facie evidence that the costs were necessarily incurred and reasonable. The burden is on Defendants to show otherwise. (*Ibid.*) Defendants did not meet their burden.

Contrary to Defendants' assertion, the discrepancy between the amount Defendants paid for copies of the proceeding transcripts and court reporters' fees North American paid the court reporter's services is not evidence of unreasonableness. Court reporter fees "are not for transcripts. They are for court reporter fees, an entirely different expense. The parties have to pay the court reporter regardless of whether anyone orders transcripts." (*Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 29, 58.)

Here, Defendants provide no evidence that court reporter fees, such as the per diem fee paid by North American, was unnecessary or unreasonable. Further, by not addressing any other costs, Defendants fail to meet their burden to show that any other costs sought by North American are unreasonable or where unnecessary. Therefore, the Court DENIES Defendants' motion.

CONCLUSION

Based on the foregoing, the Court denies Defendants' motion to tax costs and awards \$16,028.14 to North American as reasonable and necessary costs.

Counsel for North American is ordered to provide notice.

IT IS SO ORDERED.

TENTATIVE

RYLAN JOHN BURNETT

v.

**ELIJAH DASHAWN
TAYLOR, ET AL.**

CIVRS2402748

PROCEDURAL/FACTUAL BACKGROUND

This is a personal injury action. On December 11, 2024, Plaintiff Rylan John Burnett filed a judicial form complaint against Defendants Annette Lerma (Annette),² Elijah Dashawn Taylor, and Angelena Lerma (Angelena). Plaintiff alleged three causes of action: (1) motor vehicle negligence; (2) general negligence; and (3) negligent entrustment.

Plaintiff alleges that on August 12, 2023, at the intersection of Central Avenue and El Prado Road in the City of Chino, the Defendants were negligent in operating, controlling, and entrusting a motor vehicle causing a motor vehicle collision that severely injured Plaintiff.

Now before the Court is Plaintiff's motion for leave to file a first amended complaint under California Code of Civil Procedure³ sections 473, subdivision (a), and 576. This motion first came

² To assist the reader with identifying the parties, certain parties will be referred to by their given names "for purposes of clarity, not out of disrespect." (*Young v. McCoy* (2007) 147 Cal.App.4th 1078, 1082, fn. 2.)

³ All further code references are to the Code of Civil Procedure unless stated otherwise.

before the Court on August 28, 2026, and the Court continued the motion to review Defendant Taylor's untimely opposition and Plaintiff's untimely reply.

DISCUSSION

Legal Standard

Under Section 473, subdivision (a)(1), in furtherance of justice and upon terms as may be proper, the Court may allow a party to amend pleadings. Section 576 also provides, "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." Motions for leave to amend are left to the sound discretion of the court. (§ 473.)

Procedurally, a motion to amend a pleading must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Rules of Court, rule 3.1324(a).)

In addition, a separate declaration must accompany the motion and specify: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier. (Rules of Court, rule 3.1324(b).)

Analysis

Procedurally, Plaintiff complied with California Rules of Court, rule 3.1324(a). He provided a redlined proposed complaint which documented the deletions and additions and

provided a proposed complaint which included all the proposed changes. (Yazdi Decl. ¶¶ 3-4; Ex. 1 and 2.)

Regarding rule 3.1324(b), Plaintiff's declaration does include the effect of the amendment on the matter, why the amendment is necessary and proper, and when the facts that gave rise to the amended allegations were discovered, and the reason why the request was not made earlier. (Yazdi Decl. ¶¶ 5, 6, 10-11, 14.)

In opposition, Defendant Taylor argues that Plaintiff's motion is prejudicial because it is untimely. Taylor specifically refers to the traffic collision report and the incident investigation reports being drafted in August 2023 and that Officer Asbee's deposition on April 3, 2026, revealed no new information. Taylor also argues that the addition of punitive damages offers a new theory of liability, which would be prejudicial given that trial is six months away. Taylor further argues that Plaintiff does not allege the prima facie elements for punitive damages in his proposed first amended complaint.

While Taylor is correct that the traffic collision report and incident investigation report were drafted in August 2023 and that Officer Asbee's deposition may not have offered new facts, Taylor does not address the information that was procured from his deposition on April 15, 2026 and Angelena's deposition on April 13, 2026. These testimonies show that on the night of the incident Taylor had two to four alcoholic drinks, that Taylor was aware that after two drinks he would become intoxicated, that Angelena was aware that Taylor drank that night, and despite both Taylor and Angela knowing the dangers of drinking, Angelena consented to Taylor driving her vehicle. Furthermore, this had occurred in their relationship more than one time. (Yazdi Decl. Exh. 5, 70:15-16, 71:1-3, 78:7-19, 119:18-22; Exh. 6, 46:20-22; 121:16-20.) This is included in Plaintiff's proposed first amended complaint. (Proposed FAC, p. 6.)

Given that Plaintiff filed his leave to amend a month after obtaining this information, the motion was timely and Plaintiff provides a sufficient explanation for why this amendment was not sought earlier.

Taylor's argument that the addition of punitive damages is a new "cause of action" and brings another theory of liability is without merit. Punitive damages are a type of damage. In other words, it is a remedy and not a cause of action.

Lastly, it is not appropriate for the Court to consider whether Plaintiff has met the prima facie elements of punitive damages at this stage. If Taylor believes that Plaintiff has not made a prima facie showing, Taylor may file the appropriate motion at the appropriate time.

Therefore, the Court **GRANTS** Plaintiff's motion for leave to file a first amended complaint.

CONCLUSION

Based on the foregoing, the Court **GRANTS** Plaintiff's motion for leave to file a first amended complaint. The first amended complaint shall be filed within ten (10) court days from the date of this order.

Counsel for the moving party is ordered to provide notice.

IT IS SO ORDERED.